



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 31 1996

DOT-E 9061 (EXTENSION)
FIFTH REVISION September 30, 1994

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9061 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn E. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

July 31, 1996
(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Safesport Mfg. Co. Div. of Ellett Brothers, Inc.
Chapin, SC

July 28, 1996

Expired - Not Active



U.S. Department
of Transportation

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SEP 30 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9061
(FIFTH REVISION)

1. The S.S.I. Group Ltd., (DBA - The Speleoshoppe) Fairdale, Kentucky is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a Division 4.3 material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of small quantity packages of a Division 4.3 labeled flammable solid and Dangerous When Wet but without a Flammable Solid W placard on the vehicle, and provides no relief from any regulation other than as specifically stated. (See Appendix A of this exemption)

2. BASIS. This exemption is based on The S.S.I. Group Ltd's (DBA The Speleoshoppe) application dated July 31, 1994, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Calcium carbide, classed as Division 4.3, UN1402.

4. PROPER SHIPPING NAME (49 CFR 172.101). Calcium carbide.

5. REGULATION AFFECTED. 49 CFR 172.504, 173.178.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification metal container with a triple-friction water-tight lid not exceeding 2.5 pounds net weight in capacity. No more than 12 sealed metal containers, may be placed in a fiberboard box (of not less than 200 pound bursting test) and the box must be securely sealed with vinyl tape or equivalent material. The individual package as described above may not be overpacked.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

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c. Motor vehicles or rail cars used to transport packages containing calcium carbide which comply with all the requirements of 49 CFR and the provisions specified in this exemption are excepted from the "Flammable Solid W" placard requirement.

d. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR 171-180.

e. No new construction of this packaging identified in paragraph 7 of this exemption is authorized after September 30, 1994. As the holder of this exemption, you may request a renewal to continue the use of the packaging manufactured prior to September 30, 1994. However, the exemption will not carry an expiration date subsequent to September 30, 1996 since use of the packaging is prohibited after that date. This is consistent with the transitional provision of 49 CFR Section 171.14 and the implementation of the new packaging requirements adopted under Docket HM-181.

9. Compliance. Failure by a person to comply with any of the following may result in the suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws.

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.106 se seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

10. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

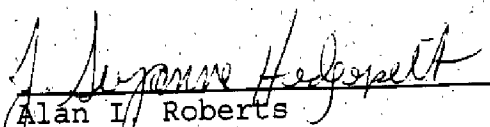
11. EXPIRATION DATE. July 31, 1996.

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Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption are
permitted. Any alteration of this exemption is prohibited.

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APPENDIX A

The following are hereby granted party status to this exemption based on their applications submitted in accordance with 49 CFR 1071.111 and the public proceeding thereon and 107.105.

Leonard Joseph Co. & Safesport Manufacturing Co, Denver, Colorado, application dated July 31, 1994. - PTE-1